

**SFIO Vs Adarsh Buildestate etc. COMA No.5/2019
CNR No. : HRGR-01-007022/2019**

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

**Present : Sh. Lokender Singh Raghav, Senior Standing Counsel,
for complainant, SFIO.**

**Accused Companies, A-1 to A-70
And Accused No. 123 Rohit Modi**

**Present : Accused Rohit Modi, authorized representative of the
above companies not produced by the jail authorities.**

As per order dated 4.9.2019, production warrant of the accused Rohit Modi was issued for today but again he has not been produced by the Superintendent, Central Jail, Jaipur (Raj.). A written reply has been sent by the Superintendent, Central Jail, Jaipur, inter-alia alleging that the accused could not be produced as his presence is required in some case at Jaipur as per the order passed by Additional Chief Metropolitan Magistrate, Jaipur. A copy of the order is also sent which shows that at no point of time learned ACMM has ever ordered the jail authorities not to send the accused to any other court. Then this court is trying the case in hand as a Special Court of a Sessions Judge and the ACMM has no authority to stop the presence of the accused before this Court for want of any jurisdiction with her. As such the explanation put forward is without any basis and now it is ordered that fresh production warrant of accused Rohit Modi be issued for 03.10.2019, with directions to the Superintendent, Central Jail, Jaipur to produce this accused before this court without any lapse. A copy of this part of the order be sent to ACMM, Jaipur for information and necessary action. A copy of this order be also sent to SSP, Jaipur with direction to provide necessary police force to produce the accused before this Court, failing which the matter will be taken against the police authorities for keeping the accused at Jaipur illegally. A copy of this order be also handed over to Shri Lokender Singh

Raghav, Senior Standing Counsel for the complainant, SFIO to take up the matter with Jaipur police for non-compliance through the Director of SFIO.

**Accused Companies, A-71 to A-78
(And accused A-135, Sidharth Chauhan)**

As per order dated 4.9.2019, the warrant of arrest of accused Sidharth Chauhan (A-135) received back unexecuted. Let his fresh warrant of arrest be issued for 03.10.2019 to be executed by DCP Hq., Gurugram through a senior police officer, who will appear on the date fixed to explain, if it remained unexecuted.

Accused Companies promoted by accused, Vivek Harivyasi:

- A-79 : A3G Infra Private Limited
- A-90 : Cynosure Real Estate Pvt. Ltd.
- A-91 : EOS Developers Pvt. Ltd.
- A-92 : Adler Infra Ventures Pvt. Ltd.
- A-93 : Headstrong International Exports Pvt. Ltd.
- A-115: Vivek Harivyasi in custody.

Present: Accused Vivek Harivyasi, in custody No. A-115, with counsel.

Accused Vivek Harivyasi produced in custody after expiry of 15 days of custody, in his personal capacity as well for the above referred companies being its authorized representative and his presence has been marked through video conferencing by the Duty Magistrate. Heard. Pending further proceedings, he is remanded to judicial custody till 30.09.2019 and be produced for further proceedings through video conferencing.

**Accused Company Prince Realbuild Pvt. Ltd., A-80 :
(through Naveen Kumar, AR)**

Fixed for 03.10.19.

**Accused Companies,
A-81 : HNS Infratech Pvt. Ltd.
A-82 : HNS Projects Pvt. Ltd.**

**Present : Accused A-140, Surender Singh in custody
Sh. Anuj Lohia, Advocate for accused.**

Accused Surender Singh produced in custody after expiry of his 15 days custody. Heard. Pending further proceedings, he is remanded to judicial custody till 30.09.2019 and be produced for further proceedings.

Accused-Company, A-83 : Sear Built Pvt. Ltd.

Fixed for 3.10.2019.

**Accused-Partnership Firm, A-84, Abhay Kumar and Associates
(through Accused Abhay K. Shah, A-127, its partner)**

Since the bail application of this accused is pending for 18.9.2019, file be put up on the date fixed for further proceedings.

**Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
and accused No. A-130, Jainam Rathod.**

Present :

**Accused No.A-130, Jainam Rathod in custody with
Shri Salim Malik Advocate along with Gulshan Sharma
Local Advocate**

Accused Jainam Rathod (A-130) produced for accused Company, A-85, as well as in his individual capacity after expiry of his 15 days custody. Heard. Pending further proceedings, he is judicially remanded to judicial custody and be produced on 03.10.2019 for further proceedings.

Accused companies :

**A-86 : Laxmikripa Buildcon Pvt. Ltd.
A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd.
A-88 : Riddhi Siddhi Infratech Pvt. Ltd.**

Fixed for 03.10.2019.

**Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Accused No. A-170 and A-171 its partners)**

Since the bail applications of these accused are pending for 18.9.2019, file be put up on that date for further proceedings.

Accused Companies No.:

A-94: Aarti Marketing Pvt. Ltd.

A-95: Caranation Trading Pvt. Ltd.

A-96: Cyan Financial Solutions Pvt. Ltd.

A-97: Lever Finvest Pvt. Ltd.

Fixed for 03.10.19.

**Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)**

Fixed for 03.10.2019.

**Accused-companies : A-99 : Dinkar Commercials Pvt. Ltd.
and A-100 : Amarendra Financial Pvt. Ltd. Along with and Accused
No. A-176 Raj Kumar Modi, its director**

Present: Accused absent.

Warrant of arrest of accused Raj Kumar Modi and notice of surety Smt. Rekha Modi, received back un-served for want of their availability. In this case Sh. Rajesh Ranjan, Advocate, was also directed to help the police to serve notice on the surety as he has identified the surety but nothing has been done by him and he is also not present to explain the proceedings. As such let he be also directed through a notice to produce the surety and fresh warrant of arrest of accused Raj Kumar Modi be issued for 03.10.2019. Notice to surety Smt. Rekha Modi be also issued for the date fixed.

Accused-companies:

A-101: Alba Polymers Ltd.

A-102: Channel Nine Entertainment Ltd.

A-103: Funny Software Ltd.

A-104: Gold Line International Finvest Ltd.

A-105 : Inceptum Enterprises Limited
A-106 : Kanak Krishi Implements Ltd.
A-108: Porsche Capital Market Ltd.
A-109 : Sagitarius Advertising Ltd.
A-110: Satkar Finlease Ltd.
A-111 : Surya Marketing Ltd.
A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.

Fixed for 03.10.2019.

A-107 : Padmawati Art Creation Pvt. Ltd.

Fixed for 03.10.2019.

Accused who are in custody but not produced by Jail Incharge

A-113 : Mukesh Modi.
A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh
A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal
A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

As per the observations made in the order dated 4.9.2019, production warrants of all the above accused remained unexecuted and none of these accused have been produced by the Central Jail Authority, Jaipur. It is alleged that out of the above accused, accused Mukesh Modi (A-113), Rahul Modi (A-114) and Ishwar Singh Sindal (A-131) have been taken by the Ahemdabad police and have not been sent back to Central Jail, Jaipur, whereas the other accused have not been produced the Superintendent, Central Jail, Jaipur (Raj.). A written reply has been sent by the Superintendent, Central Jail, Jaipur, inter-alia alleging that the accused could not be produced as his presence is required in some case at Jaipur as per the order passed by Additional Chief Metropolitan Magistrate, Jaipur. A copy of the order is also sent which shows that at no

point of time learned ACMM has ever ordered the jail authorities not to send the accused to any other court. Then this court is trying the case in hand as a Special Court of a Sessions Judge and the ACMM has no authority to stop the presence of the accused before this Court for want of any jurisdiction with her. As such the explanation put forward is without any basis and now it is ordered that fresh production warrants of these nine accused be issued for 03.10.2019, with directions to the Superintendent, Central Jail, Jaipur to produce this accused before this court without any lapse. A copy of this part of the order be sent to ACMM, Jaipur for information and necessary action. A copy of this order be also sent to SSP, Jaipur with direction to provide necessary police force to produce the accused before this Court, failing which the matter will be taken against the police authorities for keeping the accused at Jaipur illegally. A copy of this order be also handed over to Shri Lokender Singh Raghav, Senior Standing Counsel for the complainant, SFIO to take up the matter with Jaipur police for non-compliance through the Director of SFIO.

A-117 : Priyanka Modi in custody with her Advocate.

Accused Priyanka Modi produced in custody in her personal capacity after expiry of custody of 15 days. Heard, pending further proceedings, she is remanded to judicial custody till 30.9.2019 and be produced for further proceedings.

Accused No. :

A-167 : Rajeev Verma

A-168 : Sushil Maloo

A-169 : Rajendra Singh Bhandari

Present : Shri Mohan Chaudary Advocate

Personal appearance of all these three accused has been exempted vide order dated 4.9.2019.

Accused No. :

A-137 : Shinder Pal Singh
A-138 : Girbir Singh Sandhu

The anticipatory bail application of both these accused has already been dismissed on 13.9.2019 and interim protection has been recalled but they have not surrender. As such, Let warrants of arrest of both these accused be issued 3.10.2019.

Accused who are absent but moved bail applications under section 438 Cr.P.C.

A-118 : Jinendra Vyas
A-127 : Abhay K. Shah
A-155 : Mahender Singh Tak
A-163 : Megha Chauhan
A-164 : Indu Tak
A-165 : Shyam Bihari Gupta
A-166 : Ravi Tak
A-170 : Sudhir Mehta
A-171 : Raj Kumar Bohra
A-172 : Saurabh Tak
A-178 : Mahesh Dutt Sharma
A-187 : Mahesh Kumar Tak

The anticipatory bail application of all these accused are pending for 18.9.2019. As such file be put up on 18.9.2019 for further orders.

Accused :

A-152 : Nazima Khan
A-153 : Shabbir Khan

Fixed for 03.10.2019.

Accused :

A-144 : Joydeep Dass Gupta
A-145 : Lovekush Sharma
A-148 : Avanish Kumar Tyagi
A-151 : Poonam Madan

A-156 : Praveen Maheshwari
A-157 : Rajeev Maheshwari

The anticipatory bail applications filed by all the above accused persons have been allowed and as such file be put up on 17.9.2019 for further proceedings as they have been given time to appear and furnish the bail bonds by 17.9.2019.

Accused who are absent.

A-116 : Nitin Rathore
A-119 : Vinay Kumpawat
A-121 : Paras Bolia
A-124 : Neha Gemawat
A-128 : Manish Chauhary
A-129 : Deepak Shrimali
A-132 : Meenakshi Modi
A-133 : Prakash Chandra Purohit
A-136 : Akshat Singh
A-139 : Naveen Kumar
A-141 : Aditya Sarda
A-143 : Sudhir Punia
A-146 : Leena Harivvysi
A-147 : Vimal Sanwermal Sharma
A-154 : Bharat Kumar Mardia
A-160 : Shiv Raj Sharma.
A-162 : Naveen Choudhary
A-173 : Peeyush Aggarwal
A-174 : Paramvir Singh Sangwan
A-175 : Vijay Jhindal
A-177 : Rajiv Kumar Rana

Fixed for 03.10.2019.

Accused, A-149 : Vijay Shukla

Fixed for 20.9.2019.

Accused who are in custody :

A-130 : Jainam Rathod
A-150 : Ajit Singh Rathore
A-158 : Ramlal Arya

A-159 : Hemant Kumar Jain
A-161 : Praveen Kumar
A-179 : Damyanti Bhandari
A-182 : Nimesh Kumar Ramesh Chandri Soni
A-183 : Rituraj Singh
A-184 : Dushyant Singh Rathore
A-185 : Shashank Shekhar Singh Rathore
A-186 : Jitesh Kumar Parmar.

All the above said accused have been produced before this court after the expiry of their 15 days custody. Heard. Pending further proceedings they are remanded to judicial custody till 30.9.2019 and be produced before this court.

Accused : who are on bail.

A-180 : Ichchhita Dungarwal
A-181 : Neha Kataria

Fixed for 3.10.2019.

16.09.2019
(ashok)

Sd/-
(Ravi Kumar Sondhi)
Sessions Judge, Gurugram
(UID No.HR0026).

(Ravi Kumar Sondhi)
(UID No.HR0026)
SJ, Gurugram,16.9.19
(ashok)